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Calif. Gov. Newsom Signs First-in-the-Nation Law to Ban Ultra-Processed Foods From School Lunches

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SACRAMENTO, California, Oct. 9 -- Gov. Gavin Newsom, D-California, issued the following news release on Oct. 8, 2025:

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Governor Newsom signs first-in-the-nation law to ban ultra-processed foods from school lunches

What you need to know: Governor Gavin Newsom today signed AB 1264, a first-in-the-nation law phasing out the most concerning ultra-processed foods from California schools.

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LOS ANGELES - Building on California's long-standing leadership to protect children's health and set higher nutrition standards -- from his signature on laws banning dangerous food dyes and chemicals to implementing universal school meals -- Governor Gavin Newsom today signed AB 1264 by Assemblymember Jesse Gabriel (D-San Fernando Valley), a bipartisan, first-in-the-nation law providing a statutory definition of ultra-processed foods (UPF). This landmark law will phase out the most concerning ultra-processed foods from school meals in California.

The law is based on a simple, common-sense idea: schools should not serve students products that can harm their health or interfere with their ability to learn.

California has never waited for Washington or anyone else to lead on kids' health -- we've been out front for years, removing harmful additives and improving school nutrition. This first-in-the-nation law builds on that work to make sure every California student has access to healthy, delicious meals that help them thrive. - Governor Gavin Newsom

For too many students, the meals they receive at school are the only ones they can count on in a day, which makes the quality of that food all the more important. By removing the most concerning ultra-processed foods, we're helping children stay nourished, focused, and ready to learn. AB 1264 is the first law of its kind in the nation and builds on California's long record of leading with children's health and well-being at the forefront. While Washington debates how to 'make America healthy again,' they need not look any further than California. - First Partner Jennifer Siebel Newsom

"With Governor Newsom's signature on AB 1264, California has taken a historic step toward protecting our children from harmful ultra-processed foods and chemical additives," said Assemblymember Jesse Gabriel. "While Washington DC is paralyzed by inaction, California is once again leading the nation with a bipartisan, commonsense, science-based approach. Here in the Golden State, Democrats and Republicans are joining forces to ensure that students are receiving healthy, nutritious meals that are made from real foods, not harmful chemical additives. I applaud Governor Newsom for his continued leadership on food safety and I am grateful to the dedicated advocates from around the country who worked tirelessly to help us pass this important new law."

California's work to promote healthier school food long predates the national "Make America Healthy Again" movement. Since taking office, Governor Newsom and First Partner Jennifer Siebel Newsom have advanced a series of first-in-the-nation reforms to eliminate toxic additives, strengthen nutrition standards, and expand healthy food access in schools statewide.

California leads the nation in protecting student health, ensuring access to food

* In January, Governor Newsom signed an executive order directing state agencies to recommend potential actions to limit the harms associated with "ultra-processed foods" and food ingredients that pose a health risk to individuals. This bill aligns with the Executive Order.

* Governor Newsom previously signed AB 418 (Asm. Gabriel, 2023) and AB 2316 (Gabriel, 2024), banning four potentially harmful chemical food additives from products sold statewide, including red dye 3 and brominated vegetable oil, which is often used as a stabilizer in citrus-flavored beverages, and prohibiting schools from serving and selling foods containing synthetic food dye additives associated with risks to health harms in children, including cancer, damage to the immune system, and neurobehavioral issues. The federal government and numerous states have taken similar actions following CA's lead.

* In 2024, Governor Newsom signed a legislative package to increase enrollment in state food assistance programs, reduce youth consumption of processed foods, and increase access to healthy, locally grown food in all California communities.

* This summer, more than 4 million California children received SUN Bucks food benefits via EBT cards, with each eligible child receiving $120 in food benefits.

* California was the first state to implement a statewide Universal Meals Program for schoolchildren, providing all public TK-12 students access to two free meals per school day, regardless of income. California's Farm to School program, championed by First Partner Jennifer Siebel Newsom, works in tandem with Universal School Meals to ensure California students have access to two free school meals that are locally-sourced, delicious, and nutritious.

* In 2023, California became the first state to codify President Biden's new federal guidelines on school nutrition standards to reduce sugar and salt in school meals, and established a process for California to maintain those standards should a different federal Administration lower the standards.

Why this matters

In July 2025, the federal Centers for Disease Control (CDC) reported that 32.7 percent of children and youth between 12 and 19 years old are prediabetic. The National Institute of Health and the CDC has also identified the link between healthy eating and lowering an individual's risk for heart disease, stroke, diabetes, and other chronic health conditions.

Additionally, under Governor Newsom, California has continued:

* A long-standing ban on sodas on K-12 campuses;

* Restrictions on caffeine at any grade level, while federal standards allow caffeine in high schools;

* A requirement that entrees be sold on the same day or day after they appear on the menu to meet standards for calories, total fat, and trans-fat, while federal standards allow these to be sold without meeting any nutrition standards.

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